OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Seven questions for CEO Andrew Constance on Shoalhaven's $14.4m land sales report

Sent 10 August 2026 · To Shoalhaven City Council, Cr Wilkins · Response requested by 31 August 2026

EYE ON SHOALHAVEN COUNCIL · OPEN LETTER

Open Letter to the Chief Executive Officer: Who Cleared This Paper?

Seven questions about report CL26.157, the land sales package carried on 28 July 2026

10 August 2026

Summary for councillors receiving a copy

This open letter puts seven questions to the Chief Executive Officer about the report that carried the land sales package on 28 July.

The short version: the report told you there were “no implications to existing policies” while three Council-adopted instruments governed land disposal that night, and two road-closure reports in the same business paper named one of them correctly.

Recommendation 5 asked you to resolve to sell five community-land properties, and four paragraphs later the same report said input would come “before any final Council decision is made.”

Question 8 asks the CEO to hold off exercising his delegated authority to accept offers until the rescission motions are heard on 25 August — that is the one that cannot wait.

Mr Andrew Constance

Chief Executive Officer, Shoalhaven City Council

Dear Mr Constance,

I write in the knowledge that correspondence from this publication has, in recent months, been declined on the basis of guidance relating to unreasonable conduct. I note, for the record, that the application of that guidance to a public interest publication with more than 4,600 local readers is itself a matter currently before the NSW Ombudsman. The questions in this letter are not personal complaints. They are questions of public administration, put openly, on behalf of a readership that represents approximately 5.1 per cent of Shoalhaven’s registered voters. They are questions any member of the public could put at an ordinary council meeting. I put them here, in writing, on the public record — and will publish whatever response is received, including none.

On the night of Tuesday 28 July, at about nine o’clock, thirteen elected members voted on a single motion that put roughly twenty parcels of public land on the path to sale. Among

them was the low brick building at 132 Kinghorne Street, Nowra, where young people go on the afternoons when there is nowhere else to go.

On the question of whether any of Council's own policies bore on that decision, the report gave them one sentence: "Council's property sales' activities are managed within legislative parameters and as such there are no implications to existing policies."

Three instruments adopted by resolution of Council governed the disposal of Council land that night —

POL22/47,
the PRD16/284 due diligence procedure, and the
2017 Property Strategy. Not one is named in the report. Two road-closure reports in the same business paper named POL22/47 correctly, as did a third in the June papers.

These are my questions.

1. Who cleared it?
Council's Code of Meeting Practice, clause 3.15: "The Chief Executive Officer must cause the agenda for a meeting of the Council or a Committee of the Council to be prepared as soon as practicable before the meeting." In June, in report CL26.126, Council put it plainly to councillors: "The Chief Executive of Council is tasked with compliance with the Code of Meeting Practice."

Did you, or anyone at executive level, review CL26.157 before it was published — and was its Policy and Statutory Implications field checked against Council's adopted policies?

2. Why did three road closures get the citation and the $14.4 million package not?
CL26.155 and CL26.156, in the same business paper, each state that "Council Policy 22/47 (Development and/or Disposal of Council Lands) is relevant for the sale of the land." CL26.133 said the same in June.

On what basis did CL26.157 instead state that there were no implications to existing policies?

3. How do recommendation 5 and the consultation section sit together?
Recommendation 5 asked Council to resolve to sell 134 and 136 Kinghorne Street, 102 Plunkett Street, 22 Jacaranda Avenue and 158 Green Street. Four paragraphs later, the same report told councillors that the reclassification process would provide "further opportunities for community and stakeholder input before any final Council decision is made."

If recommendation 5 was the decision to sell, what final Council decision were councillors being told was still to come — and what earlier consultation was the new consultation "additional" to, for six properties that had none?

4. Where is the money going?
Page 33 of the Property Strategy preserves 100 per cent of net proceeds from closed roads for expenditure on roads, and directs 100 per cent of net proceeds from commercial property disposals into the Strategic Property Account — capital only, and "not to be used to fund service delivery." The package includes the Depot Beach road closure and 3 Schofields Lane, which the report itself describes as part of Council's commercial property portfolio.

How will the net proceeds of each be applied, and how is that consistent with page 33?

5. What due diligence was done?
PRD16/284 states that it "over-arches all Council property transactions and related policies," and requires valuation accounting for public benefit — "loss or creation of facilities." No due diligence report, valuation or public benefit assessment accompanied CL26.157.

What due diligence was undertaken for each property, where is it recorded, and will it be provided to councillors before 25 August?

6. Why does CL26.160 say the new policy includes the old one?
CL26.160 told councillors: "The revised policy now includes the provisions of the former POL22/47 and POL22/120." On a clause-by-clause reading it does not. The due diligence linkage, the process steps, the requirement that meetings with potential proponents be minuted and filed, and the clause that "the public interest is uppermost and overrides any private interest of any party" are all absent from POL25/29 and absent from the report's list of key amendments.

Why were councillors told the revised policy includes the provisions of the former policy?

7. What were councillors given on 8 May?
CL26.157 states that its recommendations "are consistent with the strategic direction discussed at" the Councillor Workshop of 8 May 2026.

What material was provided to councillors at that workshop, and did any of it address POL22/47, PRD16/284 or the Property Strategy?

8. And one request
Recommendation 8 gives you delegated authority to complete negotiations for settlement and accept offers for purchase. Rescission motions on both CL26.157 and CL26.160 are listed for the Ordinary Meeting of Tuesday 25 August at 5.30pm.

Will you undertake not to exercise that delegation — not to complete negotiations or accept any offer on these properties — until Council has dealt with those motions?

Every document referred to above is published on Council's website. None of it is confidential. I am not asking you to accept any characterisation of mine; I am asking you to read the business papers against the three policies and answer seven questions and one request.

I will publish your response in full. If none comes, I will publish that too.

Yours sincerely,

Stephen Prothero

Eye on Shoalhaven Council · steveprothero.substack.com

Note to councillors receiving a copy of this letter

The questions above are put to the Chief Executive Officer on the public record. If you believe they warrant answers, you are in a position to raise them directly in the chamber — through a Question on Notice, a Notice of Motion, or a question to the Mayor in open council on 25 August. That is one of the most effective ways to place these matters on the public record in a forum where a response cannot be declined. Question 8, the undertaking not to exercise the delegation before the rescission motions are heard, is the one that is time-critical. This publication will report whatever is raised and whatever is answered.

Sources: Shoalhaven City Council Ordinary Meeting business papers, 28 July 2026 (CL26.155, CL26.156, CL26.157, CL26.160 and Attachment 1) and 29 June 2026 (CL26.126, CL26.133); minutes of 28–29 July 2026 (MIN26.240, MIN26.246); POL22/47 Development and/or Disposal of Council Lands; PRD16/284 Due Diligence for Land Transactions; Shoalhaven City Council Property Strategy, December 2017; Shoalhaven City Council Code of Meeting Practice POL24/97, clause 3.15.
